

25STCV18026 25STCV18026

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-26

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Case Number: 25STCV18026 Hearing Date: June 26, 2026 Dept: 413

TENTATIVE RULING

BP

Glass Garage Doors & Entry Systems, Inc. v. City of Los Angeles, Case No. 25STCV18026

Plaintiff's

Motion for Leave to File Amended Complaint

Hearing

Date: 06/26/2026

No

Opposition filed.

Plaintiff

seeks leave to file an Amended Complaint to make what is described as minor, clarifying amendments to the Complaint to clarify the scope of Defendant's alleged non-compliance with Title 24 of the California Code of Regulations. Defendant would not stipulate to an order granting leave to file the Amended Complaint, but filed no opposition to the motion.

California

Rules of Court, rule 3.1324(b) requires that a declaration accompany a motion for leave to amend, to specify the following:

"(1) The

effect of the amendment;

“(2) Why

the amendment is necessary and proper;

“(3) When

the facts giving rise to the amended allegations were discovered;

“(4) The

reasons why the request for amendment was not made earlier.”

The

Declaration of Julia Consoli-Tiensvold filed with the Motion does not include all of the information required by Rule 3.1324(b), for example, when the facts giving rise to the amended allegations were discovered or the reasons why the request for amendment was not made earlier.

Nevertheless, Plaintiff has provided adequate support for its request, and, as noted above, Defendant has filed no opposition to the Motion. Moreover, the policy in California is to grant requests to amend pleadings liberally, absent a showing of prejudice to the opposing party. No such showing was made here.

For

the reasons explained above, the Court grants Plaintiff's Motion for leave to file the First Amended Complaint in the form as attached to Exhibit 2 to Ms. Consoli-Tiensvold's declaration. The Court ORDERS Plaintiff to file that pleading forthwith. It is deemed served on Defendant as of June 26, 2026.

The Court sets an Order to Show Cause re Responsive Pleading to the First Amended Complaint for _____, 2026, at 8:30AM, in Dept. 413. The Court does not set an Order to Show Cause re Sanctions under Code of Civil Procedure section 128.5, as requested by Plaintiff.